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WATSON, MISSISSIPPI SECRETARY OF STATE *v.* REPUBLICAN NATIONAL COMMITTEE ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

No. 24–1260. Argued March 23, 2026—Decided June 29, 2026

The federal election-day statutes set the day for the "election" of Representatives, Senators, and the President on a Tuesday in November. See 3 U. S. C. §1, 2 U. S. C. §§1, 7. Mississippi permits certain residents, such as college students away from home and senior citizens, to vote in federal elections by absentee ballot. Miss. Code Ann. §23–15–713. Mississippi is one of roughly 30 States that count at least some absentee ballots mailed by election day but received afterward. Absentee voters in Mississippi may dispatch their ballots by mail or common carrier, and all absentee ballots must be "postmarked on or before the date of the election and received by the registrar no more than five (5) business days after the election." §§23–15–637(1)(a), (3).

In 2024, the Republican National Committee, the Mississippi Republican Party, and various individuals sued the Mississippi secretary of state and several election officials, contending that federal law prevents Mississippi from counting absentee ballots received after election day. According to plaintiffs, the election-day statutes use the word "election" to refer to two acts—ballot casting and ballot receipt—so by setting the day for the "election," these statutes set the deadline for both. The Libertarian Party of Mississippi filed a similar suit, and the District Court consolidated the cases, and then granted summary judgment to Mississippi. The Fifth Circuit reversed, holding that Mississippi's statute is preempted because the federal election-day statutes require ballots to be received by election day.

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Held: The federal election-day statutes do not prevent Mississippi from counting absentee ballots postmarked by election day but received up to five days thereafter; nothing in the federal election-day statutes requires ballots to be received by election day. Pp. 681–696.

(a) The question before the Court is narrow: whether counting ballots postmarked by election day, but received up to five days later, violates the federal election-day statutes. Plaintiffs do not challenge the general practice of absentee voting, the use of the Postal Service or common carrier to transmit ballots, early voting, or the counting and certification of votes after election day. The Court also does not consider the scope of Congress's authority to regulate federal elections. P. 681.

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(b) The federal election-day statutes do not preempt Mississippi's law because the defining element of an "election" has always been the electorate's choice of candidate. And a related federal statute—the Uniformed and Overseas Citizens Absentee Voting Act (UOCAVA)—confirms that while federal law dictates when ballots must be cast, state law governs when they must be received. It is a "fundamental canon of statutory construction that words generally should be interpreted as taking their ordinary meaning at the time Congress enacted the statute," *New Prime Inc.* v. *Oliveira*, 586 U. S. 105, 113 (internal quotation marks and ellipses omitted), and at all relevant points, the word "election" was understood to mean "[t]he act of choosing a person to fill an office," N. Webster, An American Dictionary of the English Language 433. The Court has likewise defined "election" as the expression of the electorate's choice, explaining that "[f]rom time immemorial an election . . . has been . . . no more and no less than the expression by qualified electors of their choice of candidates." *United States* v. *Classic*, 313 U. S. 299, 318.

The electorate's choice is made when voting is complete, not when ballots are received. The most recent amendment to the Presidential election-day statute bears this out. While inserting the phrase "election day" into the statute and marking that date as a specific Tuesday, Congress also provided that when States "modif[y] the period of *voting*" in response to certain force majeure events, the term "election day" shall "include the modified period of *voting*." 3 U. S. C. § 21(1) (emphasis added). That Congress defined "election day" with reference to "voting" indicates that "voting" is the act governed by the statute. UOCAVA—which requires States to permit absent military and overseas voters to cast absentee ballots in federal elections and, as a backup, establishes a federal absentee voting system, 52 U. S. C. § 20302(a)(1)—reinforces the point. In detailing this system, UOCAVA repeatedly presupposes ballot receipt is a matter of state law. For example, to avoid any double counting, UOCAVA provides that federal absentee ballots "shall not be counted" if a State receives the voter's state absentee ballot by "the deadline for receipt of [that] ballot under State law." § 20303(b)(3). If the election-day statutes established a nationwide ballot-receipt deadline, UOCAVA's references to state ballot-receipt deadlines would make little sense.

Finally, this interpretation is consistent with the Constitution's requirements for the electoral college. The Constitution requires the "Day on which [the electors] shall give their Votes" to be "the same throughout the United States," Art. II, § 1, cl. 4, but says nothing about the day for receipt. The Constitution thus envisions a system in which receipt of votes is necessarily divorced from voting. And it sets the

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crucial, uniform day as the day of voting while leaving receipt to happen later. The federal election-day statutes follow the same pattern. Pp. 681–685.

(c) Plaintiffs' contrary view—that the election-day statutes require ballots to be received by election day—relies heavily on historical practice, precedent, and policy. But the historical practice plaintiffs identify is not dispositive; plaintiffs overread the Court's precedent; and policy cannot override the words Congress chose. Plaintiffs emphasize that in the mid-to-late 19th century, ballot receipt occurred on election day, and that in the Civil War-era, States that authorized absentee voting imposed strict election-day deadlines for ballot receipt. But plaintiffs admit they cannot precisely tie this historical practice to the text of the election-day statutes. State legislatures may have used an election-day deadline for any number of reasons unrelated to federal requirements. For example, they may have shared plaintiffs' view that an election-day deadline avoids the appearance of fraud from late-arriving ballots. At bottom, plaintiffs' theory is that because 19th-century election-day statutes govern here, so too do 19th-century voting practices. But statutes do not "tra[p] in amber" every contemporary practice on the same subject matter. *United States* v. *Rahimi*, 602 U. S. 680, 691.

Plaintiffs' interpretation of the election-day statutes is at odds with UOCAVA, which presupposes that States retain power to set ballot-receipt deadlines. At oral argument, plaintiffs and their *amicus*, the United States, offered ways to "reconcile" their interpretation of the election-day statutes with UOCAVA, Tr. of Oral Arg. 79–80, but their theories are unpersuasive.

Plaintiffs argue that *Foster* v. *Love*'s definition of "election" as the "combined actions of voters and officials meant to make a final selection of an officeholder," must mean the "combined actions" of ballot casting and receipt. 522 U. S. 67, 71. But *Foster* is not about ballot receipt and nowhere mentions it; *Foster* decides only that an election "may not be *consummated* prior to federal election day," *id.*, at 72, n. 4 (emphasis added), and specifically refuses to "isolat[e] precisely what acts a State must cause to be done" on election day, *id.*, at 72.

Finally, plaintiffs' policy arguments about election integrity and voter confidence are properly directed to legislatures, not courts, see, *e. g.*, *SAS Institute Inc.* v. *Iancu*, 584 U. S. 357, 368, and regardless, plaintiffs' definition of "election" would do little to address the concerns they identify. Pp. 685–696.

(d) Plaintiffs argue that Mississippi's election system violates the election-day statutes because the Postal Service and common carriers allow mail to be recalled before it is delivered to election officials, meaning that the electorate's choice is not actually made as of election day.

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Even if plaintiffs are right about Mississippi law, they would still lose the challenge they have pressed in this litigation: that post-election-day ballot receipt is itself unlawful. Post-election-day receipt, considered on its own, does not conflict with the election-day statutes, and state law is preempted only "'so far as the conflict extends,'" *Foster*, 522 U. S., at 69. Pp. 696–697.

120 F. 4th 200, reversed and remanded.

BARRETT, J., delivered the opinion of the Court, in which ROBERTS, C. J., and SOTOMAYOR, KAGAN, and JACKSON, JJ., joined. ALITO, J., filed a dissenting opinion, in which THOMAS and GORSUCH, JJ., joined, and in which KAVANAUGH, J., joined as to all but Parts II–C–2 and III, *post*, p. 698.

Scott G. Stewart, Solicitor General of Mississippi, argued the cause for petitioner. With him on the briefs were *Lynn Fitch*, Attorney General of Mississippi, *Justin L. Matheny* and *Anthony M. Shults*, Deputy Solicitors General, and *Daniel Kim*, Assistant Solicitor General. *Marc E. Elias*, *Elisabeth C. Frost*, *David R. Fox*, and *Robert B. McDuff* filed briefs for Vet Voice Foundation et al. as respondents under this Court's Rule 12.6, in support of petitioner.

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Paul D. Clement argued the cause for respondents. With him on the brief for respondent Libertarian Party of Mississippi were *T. Russell Nobile*, *Robert D. Popper*, *Eric W. Lee*, and *James Y. Xi*. *Gilbert C. Dickey*, *Thomas R. McCarthy*, *Cameron T. Norris*, *Conor D. Woodfin*, and *Patrick Strawbridge* filed a brief for Republican respondents.

Solicitor General Sauer argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief were *Assistant Attorney General Dhillon*, *Deputy Solicitor General Mooppan*, *Principal Deputy Assistant Attorney General Osete*, *Harry S. Graver*, *Andrew G. Braniff*, and *David N. Goldman*.*

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*Briefs of *amici curiae* urging reversal were filed for the District of Columbia et al. by *Brian l. Schwalb*, Attorney General of the District of Columbia, *Caroline S. Van Zile*, Solicitor General, A*shwin P. Phatak*, Principal Deputy Solicitor General, and *Leo W. Rassieur*, Assistant Attor-

JUSTICE BARRETT delivered the opinion of the Court.

Three federal statutes set the day for the election of Representatives, Senators, and the President. A Mississippi

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ney General, and by the Attorneys General for their respective States as follows: *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Anne E. Lopez* of Hawaii, *Kwame Raoul* of Illinois, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Jeff Jackson* of North Carolina, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Nicholas W. Brown* of Washington; for the Campaign Legal Center et al. by *Adav Noti*, *Danielle Lang*, *Valencia Richardson*, *Jared Davidson*, and *Jane Bentrott*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *David H. Gans*; for the Democratic Nation Committee by *Donald B. Verrilli, Jr.*, and *Ginger D. Anders*; for Former Election Administrators by *Kevin J. Hamilton* and *Karl J. Sandstrom*; for Fourteen United States Senators by *Amy J. Mauser*; for Individuals and Organizations Representing Military and Overseas Voters by *Leah J. Tulin*, *Justin Lam*, and *P. Benjamin Duke*; for the Lawyers' Committee for Civil Rights Under Law et al. by *Damon T. Hewitt*, *Robert N. Weiner*, *Olivia N. Sedwick*, *Jim Pastore*, and *Stephanie Thomas*; for the League of United Latin American Citizens (LULAC) by *Norman L. Eisen*, *Mimi Marziani*, and *Jon M. Greenbaum*; for the League of Women Voters et al. by *Sophia Lin Lakin*, *Ari Savitzky*, *Davin Rosborough*, *Theresa J. Lee*, and *Cecillia D. Wang*; for Local Election Officials et al. by *Jonathan Miller*, *Michael Adame*, and *David Chiu*; for the National Congress of American Indians et al. by *Jacqueline D. De León*, *Samantha D. Blencke*, *Morgan E. Saunders*, and *Wesley James Furlong*; for the National Defense Committee by *John N. Maher*, *Kevin J. Mikolashek*, and *Samuel F. Wright*; for National Security Leaders for America by *Daniel C. Schwartz*, *Benjamin J. Hogan*, *Richard E. Finneran*, and *Jean-Claude André*; for the Society for the Rule of Law Institute by *Richard Bernstein* and *Nancy A. Temple*; and for Corey J. Biazzo, *pro se*.

Briefs of *amici curiae* urging affirmance were filed for the State of Montana et al. by *Austin Knudsen*, Attorney General of Montana, *Christian B. Corrigan*, Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Raúl Labrador* of Idaho, *Brenna Bird* of Iowa, *Kris W. Kobach* of Kansas, *Mike Hilgers* of Nebraska, *Alan Wilson* of South Carolina, and *Marty J. Jackley* of